

STATE OF NEW YORK

6840--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 14, 2025

Introduced by M. of A. PHEFFER AMATO -- read once and referred to the Committee on Governmental Employees -- recommitted to the Committee on Governmental Employees in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to providing a lung disease presumption for correction officers, correction supervisors, deputy sheriff patrol or deputy sheriff patrol supervisors

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The retirement and social security law is amended by adding
2 a new section 63-j to read as follows:

3 § 63-j. Disability benefits; certain disabilities. Notwithstanding any
4 provision of this chapter or of any general, special or local law to the
5 contrary, any member who is a correction officer, correction supervisor,
6 deputy sheriff patrol or deputy sheriff patrol supervisor who is a
7 member of the New York state and local employees' retirement system and
8 contracts any condition of impairment of health caused by diseases of
9 the lung, resulting in disability or death to such correction officer,
10 correction supervisor, deputy sheriff patrol or deputy sheriff patrol
11 supervisor, presently employed, and who shall have sustained such disa-
12 bility while so employed, shall be presumptive evidence that such disa-
13 bility was incurred in the performance and discharge of duty and the
14 natural and proximate result of an accident, unless the contrary be
15 proved by competent evidence; provided, however, that prior to entry
16 into service, such correction officer, correction supervisor, deputy
17 sheriff patrol or deputy sheriff patrol supervisor successfully passed a
18 physical examination which failed to disclose evidence of any disease or
19 other impairment of the lung.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD06965-04-6

1 § 2. The retirement and social security law is amended by adding a new
2 section 605-h to read as follows:

3 § 605-h. Disability benefits; certain disabilities. Notwithstanding
4 any provision of this chapter or of any general, special or local law to
5 the contrary, any member who is a correction officer, correction super-
6 visor, deputy sheriff patrol or deputy sheriff patrol supervisor who is
7 a member of the New York state and local employees' retirement system
8 and contracts any condition of impairment of health caused by diseases
9 of the lung, resulting in disability or death to such correction offi-
10 cer, correction supervisor, deputy sheriff patrol or deputy sheriff
11 patrol supervisor, presently employed, and who shall have sustained such
12 disability while so employed, shall be presumptive evidence that such
13 disability was incurred in the performance and discharge of duty and the
14 natural and proximate result of an accident, unless the contrary be
15 proved by competent evidence; provided, however, that prior to entry
16 into service, such correction officer, correction supervisor, deputy
17 sheriff patrol or deputy sheriff patrol supervisor successfully passed a
18 physical examination which failed to disclose evidence of any disease or
19 other impairment of the lung.

20 § 3. Notwithstanding any other provision of law to the contrary, none
21 of the provisions of this act shall be subject to section 25 of the
22 retirement and social security law.

23 § 4. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This proposal would amend the retirement and social security law (RSSL) to allow members of the New York State and Local Employees' Retirement System (NYSLERS), currently employed as correction officers or deputy sheriff patrol officers, to receive an accidental disability or death benefit if the member is impaired due to lung disease.

The provisions of section 25 of the RSSL shall not apply.

This proposal would likely lead to an increased number of accidental disabilities and deaths for future retirees.

We estimate that the annual contributions of the counties employing affected members will not materially increase because of this proposal.

There will be an immediate past service cost of \$8.14 million which will be shared by all participating employers in NYSLERS.

Further, we anticipate some administrative costs to implement the provisions of this legislation.

These estimated costs are based on 11,278 affected members employed by the state of New York or a county, with annual salary of approximately \$1.2 billion as of March 31, 2025. Correction officers and deputy sheriffs covered under the RSSL section 89-series (25-year plans) and article 14-B were included. However, only deputy sheriffs with the patrol title, who cannot be readily identified, will be affected.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated January 28, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-17. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.